

Department of the Air Force: Justification for Other Than Full and Open Competition

Dollar Value of this Acquisition: [REDACTED]

CERTIFICATIONS: CO certification serves as J&A approval $\leq$ \$10M, *See [J&A Template Guidance](https://usaf.dps.mil/sites/AFCC/AQCP/KnowledgeCenter/SitePages/DAF-Contracting-Compass/Part-6---Competition-Requirements.aspx#exceptions-to-full-and-open-competition-mandatory) at <https://usaf.dps.mil/sites/AFCC/AQCP/KnowledgeCenter/SitePages/DAF-Contracting-Compass/Part-6---Competition-Requirements.aspx#exceptions-to-full-and-open-competition-mandatory>* J&A Template Guidance tab

Date	Contracting Officer (RFO 6.104-1(12)) [Name] I certify that this justification is accurate and complete to the best of my knowledge and belief.	Signature
Date	Technical and Requirements Personnel (RFO 6.104(b)) [Name] I certify that the supporting data herein, which is my responsibility, is accurate and complete.	Signature

COORDINATION

Date	Legal Review [Name]	Signature
Date	Chief of the Contracting Office [Name]	Signature
Date	Portfolio Acquisition Executive/Program Executive Officer [Name]	Signature
Date	Head of the Contracting Activity [Name]	Signature
Date	[Title] [Name]	Signature
Date	[Title] [Name]	Signature

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APPROVALS (RFO 6.104-2(a) Table 6-1 & R-DFARS 206.104-72 Table 206.1)

See [J&A Template Guidance \(https://usaf.dps.mil/sites/AFCC/AQCP/KnowledgeCenter/SitePages/DAF-Contracting-Compass/Part-6---Competition-Requirements.aspx#exceptions-to-full-and-open-competition-mandatory\)](https://usaf.dps.mil/sites/AFCC/AQCP/KnowledgeCenter/SitePages/DAF-Contracting-Compass/Part-6---Competition-Requirements.aspx#exceptions-to-full-and-open-competition-mandatory) - Justification Approvals tab

NOTE 1: A signature block will appear here (replacing these notes) based on the "Dollar Value of this Acquisition" selected above. Since most digital signatures that include date/time-stamps are redacted before they are made publicly available, always insert the date in the "Date" cell when affixing a digital signature to this document.

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I. Agency and Contracting Activity (RFO 6.104-1(a)(1)):

Agency: CFC

Contracting Activity: 50th Contracting Squadron, PKB, 210 Falcon Parkway, Suite 2116, Schriever Space Force Base, Colorado 80912

II. Nature and/or description of the action being approved (RFO 6.104-1(a)(2)):

This document approves the award of a Contract on a sole source basis to Peraton for Open System Common Environment (OS/COMET) software license maintenance in support of the Integrated Satellite Control System (ISCS) for Delta 8/10 SOPS. This justification is made on an Individual basis.

III. Description of supplies/services required to meet agency needs (RFO 6.104-1(a)(3)):

The DELTA 8/10 SOPS is responsible for the operational management of Integrated Satellite Control System (ISCS) which provides telemetry and commanding of the following fleet communication satellites: FLTSAT, UFO, and Mobile User Objective System (MUOS). ISCS is an OS/COMET based architecture which runs on Solaris Operating System and Oracle servers. 10 SOPS responsibility includes providing technical, operational and management support necessary to maintain the satellite constellations in a fully operational status twenty-four (24) hours per day, seven (7) days per week in support of the joint warfighter. OS/COMET has been used as the primary TT&C system for over 15 years at 10 SOPS. During this time, hundreds of ISCS software programs and scripts have been written to operate with OS/COMET.

The proposed sole source contract award is to obtain OS/COMET software license maintenance to include all software patches, upgrades, new version releases, licensing files and documentation for the software titled OS/COMET to support all 10 SOPS satellite constellations, networks, and software installations. Maintenance shall include technical support via telephone, email, and, if necessary, on-site at 10 SOPS to resolve emergency OS/COMET software maintenance related issues preventing 10 SOPS from meeting operational satellite requirements.

The period of performance will be a base year with four one-year option periods and will commence on 15 JULY 2026 through 14 JULY 2031 if all options years are exercised.

The estimated value including all four option periods of this requirement is [REDACTED]

This will be a firm-fixed-price contract.

IV. Statutory Authority Permitting Other Than Full and Open Competition (RFO 6.104-1(a)(4)):

10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

V. Rationale for Use of Authority (RFO 6.104-1(a)(5)):

IAW RFO 6.103-1(b), "Agencies may contract without providing for full and open competition when the supplies or services required by the agency are available from only one responsible source and no other type of supplies or services will satisfy agency requirements. For DoD, NASA, and the Coast Guard, this authority extends to situations where only a limited number of responsible sources can satisfy agency requirements."

Peraton Corporation is the original equipment manufacturer (OEM) of the OS/COMET software and is the only source with proprietary rights to the OS/COMET software design and source code. No other company can provide OS/COMET updates and patches or technical support.

Failure to obtain Peraton software license maintenance support would jeopardize the ability of 10 SOPS to maintain the ISCS in a fully functional status supporting its users during peace and wartime efforts. Absence of upgrades and software updates would

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put ISCS and MUOS at risk of being overcome by obsolescence issues, technical refreshes, and would not be in compliance with Department of Defense (DOD) Cybersecurity policies; specifically DOD Instruction 8500 requiring vendor support for all commercial off the shelf software (COTS). In addition, the lack of Peraton OS/COMET technical support would put any development efforts at great risk. Overall impact of not obtaining Peraton OS/COMET software license maintenance support is loss of satellites (FLTSAT, UFO and MUOS constellations worth \$6B) and once ISCS hardware or Operations System (OS) software becomes obsolete a loss of military satellite communications to the Joint war fighter.

Procurement of an alternate Telemetry, Tracking, and Commanding (TT&C) software is estimated to cost the government in excess of [REDACTED] and would require an estimated 6,000 hours of software engineering to re-write the programs, applications and scripts that have been written over the past 15 years.

VI. Integrated Market Analysis and Efforts to Solicit Competition (RFO 6.104-1(a)(6), (8), and (10)):

A sources sought will be posted to SAM.gov, Announcement #XXXX. This Sources sought is intended to identify if there are other products commercially available that can dispute the sole source justification, or to see if there are authorized resellers for the OS/COMET software.

Initial market research has indicated that there are no authorized resellers of this product and Peraton holds proprietary rights to the OS/COMET software License Maintenance support.

A pre-solicitation notice will be publicized in accordance with RFO 5.101(a).

VII. Determination of Fair and Reasonable Cost (RFO 6.104-1(a)(7)):

The Contracting Officer is responsible for evaluating, determining, and documenting the anticipated contract cost/price is fair and reasonable in accordance with RFO Subpart 15.4, Contract Pricing.

VIII. Any Other Facts Supporting the Justification (RFO 6.104-1(a)(9)):

[REDACTED]

IX. Actions to Overcome Barriers to Competition (RFO 6.104-1(a)(11)):

The Contracting Officer will conduct market research at the time this requirement needs to be re-acquired. Currently, the government does not foresee any ways that this sole source requirement can be overcome for competition due to Peraton holding proprietary rights to their software. Since it will take a large amount of hours and will be extremely costly to procure and install an alternate TT&C software, only new products and software released in the future could overcome these barriers to competition. Future sources sought and market research to industry will be utilized to determine this.